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50.		
51.	Lee v. Yaling Zhou, Trustee of the Yaling Family Trust Dated June 15, 2023 2025-01499696	Plaintiff Jacky Lee's motion for leave to file a third amended complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) Plaintiff is ORDERED to separately file a copy of the proposed third amended complaint within two court days. The third amended complaint must be filed as a separate document to ensure it is properly indexed in the record. Plaintiff is also ordered to serve the third amended complaint. The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Plaintiff shall give notice of this ruling.
52.	Or v. Eyedeology Optometry 2024-01409445	Plaintiffs Lok Or, Shahrzad Yazdan, and Wendy Pham's Motion for Leave to File a Second Amended Complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) Plaintiffs are ORDERED to separately file a copy of the proposed second amended complaint within two court days. The second amended complaint must be filed as a separate document to ensure it is properly indexed in the record. Plaintiffs are also ordered to serve the second amended complaint. The case management conference is scheduled for November 23, 2026 at 9:00 a.m. in Department C28. The order to show cause is discharged. Plaintiffs shall give notice of this ruling.
53.	Ragland v. County of Orange 2023-01358379	Defendant County of Orange's demurrer to first amended complaint is SUSTAINED with 10 days leave to amend as to the 1st, 2nd, 3rd, and 5th causes of action for negligence, property damage/conversion, negligent infliction of emotional distress, and violation of the California Constitution, article I, § 1 (right to privacy); and SUSTAINED without leave to amend as to all other causes of action. Plaintiff Pam Ragland shall serve and file a second amended complaint, if any, by no later than Thursday 7/23/26.

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		<u>1st cause of action, negligence.</u> The first amended complaint (FAC) fails to state facts sufficient to constitute the first cause of action for negligence. Specifically, the FAC fails to plead the existence of a statutory duty imposing governmental liability for defendant's alleged negligence. All government tort liability must be based on statute. (Gov. Code, § 815, subd. (a); <i>McCarty v. State of California Dept. of Transp.</i> (2008) 164 Cal.App.4th 955, 977 ["a public entity cannot be held liable for common law negligence"]; <i>Wilson v. County of San Diego</i> (2001) 91 Cal.App.4th 974, 979-980.) In order to state a cause of action against a public entity, "every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty" imposing governmental liability. (See <i>Searcy v. Hemet Unified School Dist.</i> (1986) 177 Cal.App.3d 792, 802 (<i>Searcy</i>).) "Since the duty of a governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified." (<i>Ibid.</i>) Contrary to plaintiff's contentions (see Opp. at p. 16), the FAC does not identify Government Code sections 815.2 or 815.6 as a statutory basis for liability under the first cause of action. The FAC makes no mention of section 815.2 at all and only cites section 815.6 as a basis for liability under the sixth cause of action for failure to perform mandatory duty. Furthermore, even if the FAC did cite Government Code sections 815.2 and 815.6 as a basis for liability under the first cause of action, these sections do not provide for governmental liability under the facts alleged. Section 815.2 provides that public entities are vicariously liable for the torts of their employees (Gov. Code, § 815.2, subd. (a)), but immune from liability where their employees are immune, except as otherwise provided by statute. (<i>Id.</i>, § 815.2, subd. (b).) And section 815.6 provides that a public entity is liable for its failure to discharge a "mandatory duty." (Gov. Code, § 815.6; see (<i>Haggis v. City of Los Angeles</i> (2000) 22 Cal.4th 490, 498 [mandatory duty].) Here, the FAC alleges "County owed Plaintiff statutory duties under Health & Safety Code §§ 17920.3, 17920.10 and Civil Code § 1941.1, and undertook a special duty to Plaintiff by responding to her reports [regarding the condition of the subject property]." (FAC ¶ 184; see <i>id.</i> ¶¶ 65-73.) The FAC alleges defendant breached these statutory duties by:

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		(1) Failing to timely and properly inspect the property and determine whether it was habitable and/or in compliance with Civil Code section 1941.1 and Health and Safety Code sections 17920.3 or 17920.10, and failing to timely red tag it accordingly. (See FAC ¶¶ 31-99, 185.) (2) Ordering SCE to shut off the electricity without notice to plaintiff. (<i>Id.</i> ¶¶ 116, 185-186.) (3) Disregarding plaintiff's quiet title claim to the back parcel of the property. (<i>Id.</i> ¶¶ 104-106, 133, 185.) (4) "[S]preading false narratives to justify their wrongful acts" and "violating plaintiff's privacy" by sharing plaintiff's "confidential unlawful detainer pleadings" and "private" letters to the county with the landlord. (<i>Id.</i> ¶ 185; see <i>id.</i> ¶¶ 104, 129-130, 144-166.) (5) Returning plaintiff's property tax payments for the back parcel of the property. (<i>Id.</i> ¶¶ 107-109, 187.) With respect to defendant's alleged failure to timely and properly inspect the property—it is true that a county that receives a complaint from a tenant regarding a potential violation of Health and Safety Code section 17920.3 (substandard building conditions) or 17920.10 (lead hazards) must inspect the subject building under Health and Safety Code section 17970.5. (Health & Saf. Code, § 17970.5, subd. (a).) However, that section expressly provides that <u>the county's obligation to inspect for these violations "shall not be construed to impose a mandatory duty pursuant to Section 815.6 of the Government Code, and shall not be construed to affect the availability of any immunity otherwise applicable to the city or county or its employees...."</u> (<i>Id.</i>, § 17970.5, subd. (i).) Further, <u>Government Code sections 818.6 and 821.4 provide that both public entities and public employees are immune from liability for the failure to make an inspection, or for the negligent inspection, of private property "for the purpose of determining whether the property complies with or violates any enactment or contains or constitutes a hazard to health or safety."</u> (Gov. Code, §§ 818.6 [public entity], 821.4 [public employee].) Thus, since public employees are immune from liability for any alleged failure to timely and/or properly inspect the subject property, defendant is also immune under section 815.2. (Gov. Code, §§ 815.2, subd. (b), 821.4; see <i>id.</i>, § 818.6.) And since the duty to inspect for the subject Health and Safety Code violations does not constitute a "mandatory duty" under section 815.6 or otherwise vitiate this immunity, section 815.6

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		also does not provide a basis for liability against defendant. (Health & Saf. Code, § 17970.5, subd. (i).) As for shutting off the electricity— by the time OCCE disconnected the power on 7/22/22 (FAC ¶ 116), plaintiff already had an unlawful detainer (UD) judgment as of 6/29/22 in favor of the landlord and was no longer a lawful tenant there (<i>id.</i> ¶¶ 98, 112, 136), and the property had been red-tagged as of 7/20/22, i.e., declared “to be unsafe and a public nuisance due to substantial building, fire, and health hazards” and ordered temporarily vacated. (<i>Id.</i> ¶¶ 60, 77, 112, 136, Ex. 3 [7/20/22 red-tag notice, 8/2/22 notice of unsafe conditions and building closure]; see also <i>id.</i> ¶¶ 32, 54, 74, 76, Ex. 3 [5/25/22 notice of violations].) After giving the landlord an opportunity to correct the substandard dwelling conditions and declaring the property a public nuisance (see <i>ibid.</i>), OCCE had the authority to take appropriate action to abate the nuisance under Health and Safety Code section 17980. (See Health & Saf. Code, §§ 17980, subds. (a), (c)(1)(A); see also Def. RJN at Ex. A [Orange County Codified Ordinance 7-1-16].) Defendant exercised that authority by temporarily ordering the entire location vacated and “disconnect[ing] [the] utilities to prevent further risk of fire, electrocution, explosion, or other damage ... in the interest of immediate public safety, pending the finality of this determination.” (FAC at Ex. 3 [8/2/22 notice of unsafe conditions and building closure; 5/25/22 prior notice of violations].) Both a public entity and public employee are “not liable for an injury caused by the issuance ... of ... any ... approval, order, or similar authorization where the public entity or an employee of the public entity is authorized by enactment to determine whether or not such authorization should be issued” (Gov. Code, §§ 818.4, 821.2), “even [if] negligence is involved” (<i>id.</i>, § 818.4, Leg. Com. comm.). Defendant is therefore immune from liability arising from its order to shut off the electricity issued as part of its efforts to abate the nuisance under section 815.2 (see Health & Saf. Code, §§ 17980, subds. (a), (c)(1)(A)). As for the allegation that defendant “disregarded” plaintiff’s quiet title claim/ownership rights to the back parcel of the property, the allegations of the FAC show plaintiff’s “quiet title claim” or purported ownership interest to the back parcel of the property is based on adverse possession. (FAC at Ex. 1 [tort claim at ¶ 72.3 & ex. 2].) The FAC fails, however, to

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		allege any facts establishing an ownership interest to the back parcel by adverse possession. To be clear, California law does not require a plaintiff to bring an action to perfect his or her claim of adverse possession, and " '[t]itle to property acquired by adverse possession matures into an absolute fee interest after the [five-year] statutory prescriptive period has expired.' " (<i>Marriage v. Keener</i> (1994) 26 Cal.App.4th 186, 191-192; see Civ. Code, § 1007.) However, title by adverse possession requires plaintiff to establish, inter alia, that her possession and occupancy of the subject parcel was "adverse and hostile to [the owner]" for a continuous period of at least five years. (<i>Nellie Gail Ranch Owners Assn. v. McMullin</i> (2016) 4 Cal.App.5th 982, 1000 [adverse possession, elements].) Here, the FAC, which is verified under penalty of perjury, alleges facts admitting plaintiff's possession and occupancy of the back parcel was not "hostile and adverse" to the owner for the five years leading to her 2022 quiet title claim to that parcel of the property. For example, the FAC alleges plaintiff "rented" the "property" (FAC ¶ 16), which consists of both parcels (<i>id.</i> ¶ 18), pursuant to the terms of a lease—i.e., with permission from the owner—for at least five years starting on 3/1/14. (<i>Id.</i> ¶¶ 16-18; see also <i>id.</i> ¶¶ 19-24, 29-30 [alleging all subsequent foreclosures/transfers of the property purporting to divest the original owner of title were void].) A lease term of five years effective 3/1/14 would have ended on or about 2/28/19. Thus, at least until March 2019 (less than five years before 2022), plaintiff's possession and occupancy of the back parcel (based on the allegations in the FAC) was with the owner's permission pursuant to a lease, rather than "adverse and hostile" to the owner's title interest. The FAC also shows that at least through 2022, plaintiff repeatedly and openly claimed that the "owner"—as opposed to plaintiff, a mere "renter" or "tenant" of the property to whom the owner continued to owe certain landlord-tenant duties—was responsible for the back parcel of the property, and that plaintiff disclaimed any responsibility for its condition accordingly. All the foregoing allegations show that plaintiff's possession and occupancy of the back parcel was not in fact "hostile and adverse" to the owner's interest for a continuous period of five years prior to her 2022 quiet title claim or even the five years prior to the filing of this case in 2023, defeating any alleged

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		"quiet title" or adverse possession ownership interest in the back parcel. As for the remaining allegations that defendant spread "false narratives to justify their wrongful acts" (i.e., that plaintiff was dangerous/violent/mentally unstable and may get in the way of repair efforts), "violat[ed] plaintiff's privacy" by sharing plaintiff's "confidential unlawful detainer pleadings" and "private" letters to the county with the landlord, and improperly returned plaintiff's last tax payment for the back parcel—the FAC fails to identify any statutes, regulations, or any other law imposing a duty on the county to refrain from warning others about plaintiff's potential interference with repair/remediation efforts at the property, keep plaintiff's letters and pleadings private and confidential, or accept plaintiff's tax payment. The FAC further fails to identify any statutes imposing governmental liability for any of this conduct. (See <i>Searcy, supra</i>, 177 Cal.App.3d at p. 802.) Finally, while the FAC cites Health and Safety Code sections 17920.3 and 17920.10 and Civil Code section 1941.1 in support of the first cause of action (see FAC ¶ 184)—none of these statutes purport to impose any governmental liability or mandatory duties on a public entity such as defendant. (See Health & Saf. Code, §§ 17920.3 [substandard building conditions], 17920.10 [lead hazards], 17970.5, subd. (i); Civ. Code, § 1941.1 [setting forth conditions that render a dwelling "untenable" and imposing duties on the landlord].) Plaintiff also claims in her opposition that the FAC identifies Health and Safety Code section 17980.6 in support of the first cause of action (see Opp. at p. 16), but the FAC relies on this section only with respect to the sixth cause of action for "failure to perform mandatory duty (Gov. Code § 815.6)." (See FAC ¶¶ 247, 251, 259.) But even if the first cause of action did rely on section 17980.6, that statute does not purport to impose any governmental liability (see Health & Saf. Code, § 17980.6), and also does not impose any mandatory duties for purposes of liability under Government Code section 815.6 as a matter of law. (<i>Fox v. County of Fresno</i> (1985) 170 Cal.App.3d 1238, 1241, 1243-1244 [the duties imposed by Health and Safety Code section 17980 et seq. are discretionary and not mandatory].) <u>2nd cause of action, "personal property damage/conversion."</u> The FAC fails to state facts sufficient to constitute the second cause of action for personal property

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		damage/conversion. A tort claim for damages such as this one is barred by the Government Claims Act unless otherwise provided by statute, and the FAC fails to identify any such statute providing for governmental liability. (Gov. Code, § 815, subd. (a) ["Except as otherwise provided by statute ... a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person."]; see <i>Voris v. Lampert</i> (2019) 7 Cal.5th 1141, 1150 [conversion is a common law tort claim]; see also <i>County of Santa Clara v. Superior Court</i> (2023) 14 Cal.5th 1034, 1048 [the Government Claims Act's immunity and liability provisions are aimed at common law tort claims for money damages].) <u>3rd cause of action, negligent infliction of emotional distress (NIED).</u> The FAC fails to state facts sufficient to constitute the third cause of action for NIED. "Negligent infliction of emotional distress" "is not an independent tort, but the tort of negligence," "to which" "traditional elements of duty, breach of duty, causation, and damages apply." "[Citation.]" (<i>Downey v. City of Riverside</i> (2024) 16 Cal.5th 539, 547.) "[A] public entity cannot be held liable for common law negligence"; the FAC must specifically identify a statutory duty giving rise to governmental liability. (<i>McCarty v. State of California Dept. of Transp.</i>, <i>supra</i>, 164 Cal.App.4th at p. 977; Gov. Code, § 815, subd. (a); <i>Searcy</i>, <i>supra</i>, 177 Cal.App.3d at p. 802.) As discussed above, the FAC fails to identify any such statutory duty giving rise to governmental liability. <u>4th cause of action, private nuisance.</u> The FAC fails to state facts sufficient to constitute the fourth cause of action for private nuisance. "Nothing which is done or maintained under the express authority of a statute can be deemed a nuisance." (Civ. Code, § 3482.) Although its plain language refers to statutory authority, the immunity conferred by Civil Code section 3482 also applies to acts authorized by regulations and other express governmental approvals. (See <i>Williams v. Moulton Niguel Water Dist.</i> (2018) 22 Cal.App.5th 1198, 1205.) Here, the fourth cause of action arises from defendant's alleged delay and negligence in inspecting the subject property and its conduct in abating the nuisance (FAC ¶¶ 226-228), liability for which defendant is immune as discussed above. (See Gov. Code, §§ 815.2, subd. (b), 818.4, 818.6, 821.2, 821.4; Health & Saf. Code, §§ 17970.5, subd. (i), 17980, subds. (a), (c)(1)(A).) The court cannot see how this claim can be amended successfully given the above citations.

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		<u>5th cause of action, violation of the California Constitution, article I, section 1 (right to privacy).</u> The FAC fails to state facts sufficient to constitute the fifth cause of action for violation of the right to privacy under the California Constitution. (See <i>Hill v. National Collegiate Athletic Assn.</i> (1994) 7 Cal.4th 1, 35-40 [elements]; accord, <i>Sheehan v. San Francisco 49ers, Ltd.</i> (2009) 45 Cal.4th 992, 998 [same].) The FAC claims a right to privacy in plaintiff's "reputation, unlawful detainer filings, utilities, and personal and real property." (FAC ¶ 238.) Plaintiff's alleged right to privacy in her "reputation" concerns defendant's alleged dissemination of "falsehoods" that plaintiff had threatened violence and was "dangerous" to SCE and county departments involved in plaintiff's eviction and the inspection/red-tagging of the premises. (<i>Id.</i> ¶¶ 144, 146, 150.) There is no legally protected right to "privacy" in one's "reputation." A "reputation" by definition does not constitute "private" information. Furthermore, in plaintiff's 5/31/22 letter to OCCE, she admits that when Wells Fargo attempted to "self-help" by sending a van of people to "take over the house," plaintiff called the sheriff who "advised [her] to post a sign [saying,] 'Trespassers will be prosecuted and shot[,]' which [she] did." (FAC at Ex. 5 [5/31/22 letter].) Having placed a sign on the property stating that "trespassers" will be "shot," plaintiff had no reasonable expectation of privacy in her "reputation" related to the subject matter of that sign to those who may visit the property as part of the County's inspection and abatement efforts. There is also no right to privacy in one's unlawful detainer filings. Access to court files and records in unlawful detainer actions filed as limited civil cases are restricted by statute under Code of Civil Procedure section 1161.2, not for privacy reasons but to reduce the number of postjudgment claims of right to possession containing false or fraudulent information. (Stats. 1991, Chap. 1007, § 1 (S.B. 892) ["There exists in the State of California a crisis due to unscrupulous eviction defense services which utilize records of court filings in civil cases to solicit and defraud tenants," which "function by reviewing the previous day's filings of unlawful detainer actions each day"; "[b]ecause of the crisis caused by unscrupulous eviction defense services, it is necessary to restrict public access to files" of limited civil UD actions].) Indeed, a party to the action, including a party's attorney

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		(such as the landlord's counsel), can obtain a copy of the pleadings (Code Civ. Proc., § 1161.2, subd. (a)(1)), and anyone can obtain a party's UD records simply by, inter alia, providing the clerk with the names of at least one plaintiff, one defendant and the address (<i>id.</i>, § 1161.2, subd. (a)(1)(B)), or by showing "good cause," which includes the "gathering of newsworthy facts" by newspaper publishers and journalists. (<i>Id.</i>, § 1161.2, subd. (b)(1)(A).) As for plaintiff's right of privacy in "personal and real property" and "utilities," it is uncertain as to what is allegedly "private" here, and, in any event, the FAC also fails to allege an invasion of any such right. <u>6th cause of action, failure to perform mandatory duty (Gov. Code § 815.6).</u> The FAC fails to state facts sufficient to constitute the sixth cause of action for failure to perform mandatory duty under Government Code section 815.6. This cause of action is based on defendant's alleged failure to timely and properly abate unsafe housing as required by "Health & Safety Code §§ 17920.3, 17920.10, 17980.6 and Civil Code § 1941.1." (FAC ¶ 247; see <i>id.</i> ¶¶ 247-252.) As discussed above, section 815.6 provides that a public entity is liable for its failure to discharge a "mandatory duty," and a "mandatory duty" is necessary prerequisite for liability under this section. (<i>Haggis, supra</i>, 22 Cal.4th at p. 428.) The Health and Safety Code, however, expressly provides that a county's obligation to inspect for violations of sections 17920.3 (substandard building conditions) or 17920.10 (lead hazards) "shall not be construed to impose a mandatory duty pursuant to Section 815.6 of the Government Code, and shall not be construed to affect the availability of any immunity otherwise applicable to the city or county or its employees..." (<i>Id.</i>, § 17970.5, subd. (i).) As for Health and Safety Code section 17980.6, it too is only discretionary and does not impose any "mandatory" duties within the meaning of Government Code section 815.6. (<i>Fox v. County of Fresno, supra</i>, 170 Cal.App.3d 1238, at pp. 1243-1244 [the duties imposed by Health and Safety Code section 17980 et seq. are discretionary and not "mandatory" within the meaning of Government Code section 815.6].) Further, as discussed above, Government Code sections 818.6 and 821.4 render defendant immune from liability for the failure to make an inspection, or for the negligent inspection, of private property "for the purpose of determining whether the property complies with or violates any enactment or contains or constitutes a

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		hazard to health or safety.” (Gov. Code, §§ 818.6 [public entity], 821.4 [public employee].) The court cannot see how this claim can be amended successfully given the above citations. <u>7th cause of action, violation of due process (California and federal constitutions).</u> The FAC fails to state facts sufficient to constitute the seventh cause of action for violation of due process. To the extent plaintiff is attempting to allege a violation of due process under the <u>federal constitution</u>, the FAC fails to allege the deprivation of a liberty or property interest protected by the Constitution or the laws of the United States. (See <i>Las Lomas Land Co., LLC v. City of Los Angeles</i> (2009) 177 Cal.App.4th 837, 852-853 (<i>Las Lomas</i>); <i>Benn v. County of Los Angeles</i> (2007) 150 Cal.App.4th 478, 489 (<i>Benn</i>); see also <i>Hobbs v. City of Pacific Grove</i> (2022) 85 Cal.App.5th 311, 320 (<i>Hobbs</i>) [“Under the Fourteenth Amendment of the United States Constitution, the requirements of procedural due process apply to state action infringing liberty and property interests,” but the “range of interests protected by due process ... ‘is not infinite’”].) First, to the extent the claim is based on plaintiff’s leasehold interest (FAC ¶ 269), the FAC does not allege any facts as to how defendant deprived plaintiff of her rights under her lease (see FAC ¶¶ 369-373), and citing and red-tag tagging a property does not terminate a tenant’s rights under a lease in any event. (See <i>Erlach v. Sierra Asset Servicing, LLC</i> (2014) 226 Cal.App.4th 1281, 1292-1295.) Next, to the extent the claim is based on plaintiff’s purported “quiet title claim” or ownership interest to the back parcel of the property (FAC ¶ 269), the FAC fails to allege the existence of such a property interest. As discussed above, while the FAC alleges plaintiff has had a quiet title claim to the back parcel of the based on adverse possession since 2022, it alleges facts showing plaintiff’s possession and occupancy of the subject parcel was not in fact “adverse and hostile to [the owner]” for a continuous period of at least five years prior to 2022, defeating any purported property interest based on adverse possession. (<i>Nellie Gail, supra</i>, 4 Cal.App.5th at p. 1000 [adverse possession, elements]; see, e.g., FAC ¶¶ 16-18, 38-39, 126-127, 199 & Exs. 1 [tort claim at p. 4 (2010 mudslides over entire back of property) & ex. 1 (6/28/19, 8/15/19, and

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		3/25/21 “repair/property/repay demands”), 5; see also <i>id.</i> ¶¶ 19-24, 29-30.) As for plaintiff’s interest in her “utilities” (FAC ¶ 269), defendant ordered the electricity shut off on 7/22/22, after it red-tagged the property on 7/20/22, which was about a month after plaintiff had been already evicted from the premises on 6/29/22. (FAC ¶¶ 60, 77, 98, 112, 116, 136, Ex. 3.) A person does not have a fundamental liberty or property right to maintain the utilities at a property that the person has long been evicted from. As for plaintiff’s purported “<i>Erlach</i> paid relocation/return rights” (FAC ¶ 269)—this refers to a tenant’s rights to receive relocation benefits from the owner if the tenant is displaced/subject to displacement as a result of an order to vacate the property by a local enforcement agency “`as a result of a violation so extensive and of such a nature that the immediate health and safety of the residents is endangered....’ ” (<i>Erlach v. Sierra Asset Servicing, LLC</i> (2014) 226 Cal.App.4th 1281, 1293, quoting Health & Saf. Code, § 17975.) But the FAC shows plaintiff never had any such rights because, again, she was evicted from the property on 6/29/22, before defendant red-tagged it a month later and any such rights arose. (See FAC ¶¶ 60, 77, 98, 112, 136, Ex. 3.) And any claim would be against the landlord. As for plaintiff’s interest in her “reputation” (see FAC ¶ 269), there is no fundamental liberty or property right to one’s “reputation,” and it is entirely uncertain how defendant might have deprived plaintiff of her “reputation” without constitutional due process. As for plaintiff’s property interest in her “animals” (see FAC ¶ 269)—the FAC appears to allege that “Animal Control” was required to help plaintiff obtain her animals (“including a horse and chickens”) from the property upon her request (<i>id.</i> ¶¶ 155 [though plaintiff was able to retrieve her animals two days later], 177a)—but a person does not have a liberty or property right to Animal Control’s assistance in relocating their personal pets. Moreover, plaintiff’s alleged inability to retrieve her animals was the result of her landlord’s (Sunyata) successful eviction of plaintiff from the property (effected by the sheriff) on 6/29/22, pursuant to a UD judgment of possession in the landlord’s favor that the landlord obtained two months prior in April 2022. (See <i>id.</i> ¶¶ 136, 150, 175, 177.) At that point, the return of any personal property, including her animals, was

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		governed by the applicable landlord-tenant laws pertaining to a tenant’s right to reclaim property left at the premises. (See, e.g., Civ. Code, §§ 1965, 1980 et seq.) Plaintiff fails to explain how the County is responsible for her decision to leave her animals at the property at the time of her eviction, or her inability to obtain them until two days later under the laws governing her right to reclaim them. To the extent plaintiff is attempting to allege a violation of procedural or substantive due process under the <u>California Constitution</u>, plaintiff must identify a property interest or a benefit that is conferred by statute. “ ‘The “requirement of a statutorily conferred benefit limits the universe of potential due process claims: presumably not every citizen adversely affected by governmental action can assert due process rights; identification of a statutory benefit subject to deprivation is a prerequisite.” [Citation.]’ [Citations.]” (<i>Las Lomas, supra</i>, 177 Cal.App.4th at p. 855.) Here, plaintiff has not identified a statutory benefit subject to deprivation. As discussed above, plaintiff has not alleged the existence of a quiet title/adverse possession interest in the back parcel of the property and has therefore failed to allege the deprivation of due process with respect to any such alleged ownership right. Plaintiff also fails to allege facts suggesting defendant interfered with any statutory benefit to maintain her “utilities” at the property or “<i>Erlach</i> paid relocation/return rights” because, as discussed above, defendant did not shut off the electricity or red-tag the property until long after plaintiff had already been evicted by the landlord. (FAC ¶¶ 60, 77, 98, 112, 116, 136, Ex. 3.) As for plaintiff’s “animals”—again, this claim is based on Animal Control’s failure to help plaintiff retrieve her animals, but a person does not have a statutory benefit or right to Animal Control’s assistance in relocating her personal pets upon her eviction from a property. (See FAC ¶¶ 155, 177a.) Further, plaintiff’s alleged inability to retrieve her animals was the result of her landlord’s (Sunyata) successful eviction of plaintiff from the property on 6/29/22, pursuant to a UD judgment of possession in the landlord’s favor obtained in April 2022. (See <i>id.</i> ¶¶ 136, 150, 175, 177.) Once plaintiff was evicted from the premises, the return of any personal property, including her animals, was governed by the applicable landlord-tenant laws pertaining to a tenant’s right to reclaim property left at the premises. (See, e.g., Civ. Code, §§ 1965, 1980 et seq.) Thus, any inability to retrieve her

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		To the extent this cause of action is based on defendant's delay in issuing citations and/or red-tagging the property, a "delay" in enforcement does not somehow constitute a "taking" of a "property right" (much less a speculative <i>Erlach</i> right to return/relocation expenses that plaintiff did not yet have and which ultimately never arose). The "mischaracterizing [of] Plaintiff's portable pool" also does not constitute a "taking" of a "property right," and the FAC alleges that it was the owner (Sunyata/the Allens), rather than defendant, who "destroyed" the pool. (FAC ¶¶ 87, 126.) As for defendant's conduct in "demanding" or "allowing" the removal/destruction of plaintiff's "palm tree and other vegetation," and "allowing" the theft of other personal property—all of this occurred after defendant red-tagged the property on 7/20/22 and 8/2/22, and after plaintiff had already been evicted from the property as of 6/29/22. (See <i>id.</i> ¶¶ 112-117, 136.) The FAC fails to allege any facts showing it was County who "took" or "damaged" any of this personal property after they red-tagged the premises. Rather, plaintiff's claims with respect to her damaged/stolen property appear to entirely depend on plaintiff's and the owner's respective statutory duties to retrieve/protect such property following plaintiff's eviction. (See, e.g., Civ. Code, §§ 1965, 1980 et seq.; see also FAC at Ex. 1 [tort claim at ex. 1 thereto, where it lists plaintiff's "repair/property/repay demands" from 6/29/22 and thereafter].) Finally, to the extent the claim is based on defendant's alleged "taking" or damage to plaintiff's quiet title/adverse possession interest to the back parcel of the property, the allegations of the FAC show she had no such interest in the property, as discussed above. The court cannot see how this claim can be amended successfully given the above citations. <u>Requests for judicial notice.</u> Defendant's request for judicial notice is GRANTED. (See Evid. Code § 452, subd. (b).) Plaintiff's request for judicial notice is DENIED. Email communications with public personnel, the truth of the matters stated therein, and the truth of the matters stated in court filings are not proper matters of judicial notice. (See <i>LaChance v. Valverde</i> (2012) 207 Cal.App.4th 779, 783 [email communications with public department/agency personnel are not " '[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States,' of which judicial notice may be taken"]; <i>Kilroy v. State</i> (2004) 119 Cal.App.4th 140, 145-147 [court may

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		take judicial notice of the existence and contents of court records, but not the truth of the matters stated therein].) The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
54.	Naso v. Blackburn 2025-01519762	Defendants David Blackburn and CFG Investments, Inc.'s motion to strike portions of plaintiffs' Complaint is DENIED. (Code Civ. Proc., § 435, 436 [authorizing motion].) A motion to strike, like a demurrer, assumes plaintiffs' allegations as true. (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255 ["In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth"].) The Complaint alleges sufficient facts showing defendants' knowledge of mold, water intrusion, and other defects, including prior to plaintiffs' residency, and intentional failure to disclose or repair same despite multiple requests, sufficient to support punitive damages allegations at the pleading stage. (Civ. Code, § 3294, subd. (c)(1) [authorizing punitive damages for "malice," i.e. "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others"]; Complaint, ¶¶ 25, 35, 37, 50, 54, 58, 61, 64.) As to attorney fees, there is no point in striking them, as there is no requirement they be pled at all. (<i>Snatchko v. Westfield LLC</i> (2010) 187 Cal.App.4th 469, 497.) In any event, the Complaint adequately alleges a contractual basis for attorney fees. (Complaint, ¶ 73.) Moving defendants shall file an Answer to the Complaint within 10 days. The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Plaintiffs shall give notice of this ruling.
55.		
56.	Fernandez v. FCI Lender Services, Inc.	Plaintiff Virginia Fernandez's motion for attorney fees is GRANTED in part. Code of Civil Procedure section 425.16, subdivision (c)(1) provides that a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's